

Terms of Use for online services provided by the Basler Sachversicherungs-AG, Bad Homburg v.d.H. („Basler“)

1. Subject matter of the contract

Online services are Internet services provided by the Basler with personal rights of access granted to the relevant contracting partners/users.

Access and use, along with the functions made available to the contracting party concerned, are described in the Agreement relating to the online services in question, or on the Basler website. The present Terms of Use form an integral part of each Agreement.

2. Extent of user rights

The Basler will provide the contracting partner with the online services described in the Agreement, for use in accordance with the terms and conditions contained in the Agreement and in these Terms of Use.

The online services may be used only by the contracting partner and the authorized users notified to the Basler in writing by the contracting partner ("users"). No use by unauthorized third parties is permitted.

3. Internet access/identification

Unless agreed otherwise in the Agreement applicable to the online service in question, access to the Basler online services is granted to anyone who has established his identity on each occasion by entering the following:

- User name (1st level of security)
- Personal password (2nd level of security)
- Single-use supplementary password according to the list provided by the Basler Securitas (3rd level of security).

By accessing online services, the contracting partner/user accepts the provisions of the Terms of Use in their current form.

Anyone who has identified himself by user name, password and single-use password, or by the identification features defined in the Agreement applicable to the online service in question ("identification features") will be treated by the Basler as a legitimate user. The Basler may therefore, without further checking with regard to entitlement, carry out requests or transactions ordered by the person concerned, and receive orders and legally binding notifications from that person. This also applies if the person concerned is not the actual authorized user. The Basler accepts no liability for wrongful access.

4. Duty of care of the contracting partner/user

The contracting partner/user of online services must keep the identification features strictly confidential and protect against wrongful use by unauthorized persons. The contracting partner shall bear all the consequences arising out of the use, including wrongful use, of his identification features.

If there are any reasons to suspect that unauthorized persons have become aware of a password or supplementary password, the password must be changed immediately. If appropriate, the contracting partner/user must ask the Basler for a new single-use password list, and/or arrange for the access to be blocked.

5. Security and freedom from interruption

The Basler will pay the utmost attention to ensuring the security and freedom from interruption of the online services. Despite the best possible technical precautions however, security and freedom from interruption, or the confidentiality of data and/or content, cannot be guaranteed by the Basler due to the special nature of the Internet (see 8b).

It is recommended that the contracting partner/user also takes his own suitable precautions to increase security (e.g. the use of anti-virus and firewall programs).

6. Blocking access

The Basler reserves the right, where there is good cause (e.g. for maintenance purposes, in the event of security risks, or where its confidentiality and/or data protection provisions have been breached) to deny access to its online services or, if appropriate, to block or restrict access. In such cases, the Basler may require the contracting partner/user to prove his identity in some other way (e.g. signature).

The contracting party, for his part, may ask the Basler to block his access at any time. The block will be cancelled only in response to a written request.

The Basler accepts no liability for losses resulting from blocked access.

7. Confidentiality and data protection

Confidential information, in other words personal data requiring special protection, must not under any circumstances be sent to the Basler by e-mail, but should be sent using the online form provided, or as original documents by post.

8. Using online services from abroad

It is possible that the use of online services from abroad may involve the violation of foreign laws. It is the responsibility of the contracting partner to catch up on this. The Basler will accept no liability whatsoever in any such cases.

9. Liability

Except as required by law, the Basler accepts no liability whatsoever for any losses occurring out of, or in connection with, the use of online services. In particular, the Basler accepts no liability for

- a. the accuracy and completeness of data displayed, sent electronically or printed out.
- b. the occurrence of risks inherent in the Internet, such as technical or organizational difficulties when sending or receiving data, transmission errors, technical defects, disturbances or interruptions in the telephone network or Internet access, regardless of cause, unlawful access to network equipment, the smuggling in of viruses, copying and falsification of data and content, overloading of networks, malicious or accidental blocking of electronic access occasioned by third parties.
- c. the blocking of access
- d. the failure to recognize false information, lack of legitimacy or the failure to observe rules for proving identity.
- e. the use of online services from abroad.
- f. defective security and/or functionality as regards the hardware and software employed by the contracting partner/user.

10. Termination

The agreement may be cancelled by either party by giving one month's notice to the end of a calendar month. The parties reserve the right to cancel without notice in the event of any material breach of the Agreement, namely the failure to use online services in accordance with the contract, service or quality which does not comply with the Agreement, or the breach of security, confidentiality or data protection provisions.

In any event, the Agreement will end on expiry or cancellation of the insurance policies listed in the Agreement, or on the cancellation or annulment of the co-operation agreement entered into with the contracting partner (broker).

On ceasing to use the services, the contracting partner must return to the Basler all materials provided to him.

11. Changes to the terms of business

The Basler reserves the right to alter these Terms of Use and the extent of the online services at any time, and/or to make adjustments to keep up with technical or legal developments. Any such changes will be notified in an appropriate manner, normally online. Provided no objection is raised in the month following the notification, and in all cases when the online services are used for the first time, the changes will be deemed to have been accepted. Objection to changes in the Terms of Use will be seen as notice to cancel the Agreement, and will be treated accordingly as set out in 10 above.

12. Applicable law and place of jurisdiction

The Agreement and these Terms of Use are governed by German law. The place of jurisdiction is Bad Homburg v.d.H.. The Basler shall be free, however, to pursue its right at the residence of the contracting partner or in any other competent court or debt collection office.